

February 26, 2010



U.S. Department
of Transportation

East Building, PHH-30
1200 New Jersey Avenue S.E.
Washington, D.C. 20590

**Pipeline and Hazardous
Materials Safety Administration**

DOT-SP 14568
(THIRD REVISION)

EXPIRATION DATE: January 31, 2011

1. GRANTEE: U.S. Department of Defense (DOD)
(Former Grantee: Department of Defense)
Scott Air Force Base, IL
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation of CPN International, Inc. Model MC-1 portable nuclear gauges. The gauges have installed QSA Global, Inc. (formerly AEA Technology QSA, Inc.) Models X.2084 and X.8 sealed source capsules, that are qualified as special form radioactive material under the provisions of this special permit. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce. The safety analyses did not consider the hazards and risks associated with consumer use, use as a component of a transport vehicle or other device, or other uses not associated with transportation in commerce.
 - c. No party status will be granted to this special permit.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR §§ 173.469 and 173.476(a) in that the sealed capsules listed in this special permit do not meet the requirements for special form radioactive material, except as specified herein.

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5. BASIS: This special permit is based on the application of the U.S. DOD dated February 16, 2010, submitted in accordance with § 107.109.
6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Radioactive material, Type A package, special form, <i>non fissile or fissile-excepted</i>	7	UN3332	N/A

7. SAFETY CONTROL MEASURES:

a. PACKAGING - Type A packagings must be used as prescribed by the HMR. Each Type A packaging may only contain one CPN International, Inc. Model MC-1 portable nuclear gauge.

b. OPERATIONAL CONTROLS -

1. The use of this special permit is limited to CPN International, Inc. Model MC-1 portable nuclear gauges. The gauges have installed QSA Global, Inc. (formerly AEA Technology QSA, Inc.) Models X.2084 and X.8 sealed source capsules, that are qualified as special form radioactive material under the provisions of this special permit, as provided in the following table. The table provides the permitted capsule model numbers, upper activity limits, and applicable manufacturing dates.

Capsule Model No.	Am-241 Activity	Cs-137 Activity	Manufactured Before
X.8	N/A	0.37 GBq (10 mCi)	9/23/81
X.2084	1.85 GBq (50 mCi)	N/A	7/28/83

2. Each CPN International, Inc. Model MC-1 portable nuclear gauge must contain no more than one X.8 and one X.2084 capsule.

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3. The sealed source capsule(s) must have no known or suspected defects.

4. The sealed source capsule(s) must have passed a semi-annual leak test.

5. This special permit only authorizes transportation of CPN International, Inc. Model MC-1 portable nuclear gauges in the Department of Defense inventory described in the application dated August 27, 2007, as updated by the recovery and disposal plan described in the February 16, 2010 renewal application.

8. SPECIAL PROVISIONS:

a. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

b. Each package must be conspicuously marked "DOT-SP 14568" with letters and numerals at least 1" (2.5 cm) high.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle, cargo vessel, and cargo aircraft only.

10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each motor vehicle, cargo vessel, and cargo aircraft used to transport packages covered by this special permit. The shipper must furnish a current copy of this special permit to the air carrier before or at the time the shipment is tendered.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.

o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.

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- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)- 'The Hazardous Materials Safety and Security Reauthorization Act of 2005' (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term "exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for Dr. Magdy El-Sibaie
Acting Associate Administrator for Hazardous Materials Safety

February 26, 2010

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-30, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: Williams